

15	Vctm Landlord v. Garza	Before the Court is a motion filed by defendant Steven A. Garza (Defendant or Garza) to consolidate this action with <i>Mahgerefteh v. Garza</i>, OCSC case no. 2024-01379415. For the reasons set forth below, the motion is DENIED. When there are actions involving common questions of law or fact pending, a court may order a joint trial of any or all of the matters in issue in the actions or may order all the actions consolidated, or such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay. (Code Civ. Proc. § 1048, subd. (a).) The purpose is to enhance trial court efficiency (i.e., to avoid unnecessary duplication of evidence and procedures) and to avoid the substantial danger of inconsistent adjudications. (<i>Todd-Stenberg v. Daikon Shield Claimants Trust</i> (1996) 48 Cal.App.4th 976, 978-979.) The moving party must show the issues in each case are basically the same and that economy and convenience would be served by consolidation. (<i>Ibid.</i>) Here, the motion is procedurally defective because it is noticed as seeking consolidation with <i>Mahgerefteh v. Garza</i>, OCSC case no. 2024-01379415, but Defendant concedes that case was dismissed. In the reply, Defendant clarifies he is actually seeking consolidation between this action and <i>Magherefteh v. Garza</i>, OCSC case no. 2024-01402923. Not only is notice insufficient, Defendant failed to provide sufficient information from that action for the Court to adequately determine whether the claims are essentially the same, e.g., Defendant failed to submit a copy of Plaintiff's third amended complaint. Lastly, there is no proof a copy of the motion was filed in that action, as required by California Rules of Court, rule 3.350(a)(1). Case management conference CONTINUED to September 4, 2026 at 2:00 p.m. Defendant shall give notice of this ruling.
16	Palacios v. Board of Regents of the University of California	Before the court is the unopposed demurrer and unopposed motion to strike filed by defendants Regents of the University of California and Julie Ann Schneider, DRM, RA (collectively, Moving Defendants) directed to the complaint of plaintiff Andres Quezada Palacios (Plaintiff). The demurrer is SUSTAINED with 20 days leave to amend and the motion to strike is GRANTED without leave to amend. <u>Demurrer</u> <u>First, Second, and Third Causes of Action:</u> Moving Defendants contend Plaintiff lacks standing to assert the causes of action for medical malpractice, gross negligence, and elder abuse. (<i>Peterson v. Cellco Partnership</i> (2008) 164 Cal.App.4th 1583, 1589 ["Because standing goes to the existence of a cause of action, lack of standing may be raised by demurrer."].) Plaintiff pursues these causes of action in his individual capacity, but the complaint speaks only of medical care provided by defendants to Andres Herrera Palacios, not to Plaintiff. Further, as Moving Defendants argue, the complaint